NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI

(COURT- III)

In the matter of the Companies Act, 2013 and In the matter of Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

CA (CAA) – 56 (ND) 2023

In the matter of Composite Scheme of Arrangement

Amongst

Haldiram Manufacturing Company Private Limited

.....(Demerged Company-1/ Applicant Company No.-1)

And

Haldiram Ethnic Foods Private Limited

....(Demerged Company-2/ Applicant Company No.-2)

And

Haldiram Marketing Private Limited

.....(Demerged Company-3/ Applicant Company No.-3)

And

Haldiram Products Private Limited

....(Transferor Company-1/ Amalgamating Company-1/ Applicant Company No.-4)

And

HR Bakers Private Limited

....(Transferor Company-2/ Amalgamating Company-2/ Applicant Company No.-5)

And

Haldiram Retail Private Limited

.....(Resulting Company/Transferee Company/ Applicant Company No.-6)

Order Pronounced On: - 29.08.2023

CORAM: -

Shri Bachu Venkat Balaram Das

Hon'ble Member (Judicial)

Shri Atul Chaturvedi

Hon'ble Member (Technical)

PRESENT:-

For the Applicant: - Mr. Satwinder Singh, Mr. NPS Chawla, Mr. Lokesh Dhyani, Ms. Ashima Jain, Mr. Anmol Sharma, Adv.

O R D E R

Per: ATUL CHATURVEDI (MEMBER TECHNICAL)

1. This is a First Motion Petition filed jointly on behalf of 6 Applicant Companies seeking approval of this Tribunal for the sanction of composite scheme of Arrangement under section 230 and 232 of the Companies Act, 2013, read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 in respect of above 6 Applicant Companies.

2. The Board of Directors of the Applicant Companies / Demerged Company-1/ Applicant Company No.-1, Demerged Company-2/ Applicant Company No.-2, Demerged Company-3/ Applicant Company No.-3, Transferor Company-1/ Amalgamating Company-1/Applicant Company No.-4, Transferor Company-2/ Amalgamating Company-2/ Applicant Company No.-5, Resulting Company/Transferee Company/ Applicant Company No.-6 have approved the proposed Scheme of Arrangement and same was approved vide Board Resolutions marked as Annexure – C3 for Applicant Company No. 1, Annexure – D3 for Applicant Company No. 2, Annexure – E3 for Applicant Company No. 3, Annexure – F3 for Applicant Company No. 4, Annexure – G3

for Applicant Company No. 5 and Annexure – H3 for Applicant Company No. 6.

3. We have heard Ld. Counsel appearing for the Applicant Companies. It is represented that the registered office of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the instant Joint Application falls within the jurisdiction of the Tribunal. Ld. Counsel has given the brief description of the Applicant Companies.

4. **HALDIRAM MANUFACTURING COMPANY PRIVATE LIMITED**

Applicant Company No. 1, bearing CIN No. U74899DL1994PTC059370 and PAN: AAACH3170K having its registered office at B-1/F-12, Mohan Co-operative Industrial Estate, Mathura Road, New Delhi – 110044. The paid up Share Capital of the Applicant Company No. 1 is Rs. 10,17,82,660/- divided into 1,01,78,266 equity shares of Rs. 10 each.

5. **HALDIRAM ETHNIC FOODS PRIVATE LIMITED**

Applicant Company No. 2, bearing CIN No. U15122DL2003PTC122260 and PAN: AAFCA0665B having its registered office at B-1/F-12, Mohan Co-operative Industrial Estate, Mathura Road, New Delhi – 110044. The paid up Share Capital of the Applicant Company No. 2 is Rs. 62,94,630/- divided into 6,29,463 equity shares of Rs. 10 each.

6. **HALDIRAM MARKETING PRIVATE LIMITED**

Applicant Company No. 3, bearing CIN. No. U74899DL1982PTC013296 and PAN: AAACH0189A having its registered office at B-1/F-12, Mohan Co-operative Industrial Estate, Mathura Road, New Delhi – 110044. The paid up Share Capital of the Applicant Company No.3 is Rs.5,95,22,900/- divided into 5,59,229 equity shares of Rs. 100 each.

7. **HALDIRAM PRODUCTS PRIVATE LIMITED**

Applicant Company No. 4, bearing CIN. No. U15490DL1996PTC081504 and PAN: AAACH8461R having its registered office at 19A, Shivaji Marg, Najafgarh Road, New Moti Nagar, new Delhi – 110015. The paid up Share Capital of the Applicant Company No. 4 is Rs. 92,20,000/- divided into 9,22,000 equity shares of Rs. 10 each.

8. **HR BAKERS PRIVATE LIMITED**

Applicant Company No. 5, bearing CIN No. U15127DL2017PTC317466 and PAN: AAECH1855P having its registered office at B-1/F-12, Mohan Co-operative Industrial Estate, Mathura Road, New Delhi – 110044. The paid up Share Capital of the Applicant Company No. 5 is Rs. 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10 each.

9. **HALDIRAM RETAIL PRIVATE LIMITED**

Applicant Company No. 6, bearing CIN No. U55209DL2018PTC331872 and PAN: AAECH4952M having its registered office at B-1/F-12, Mohan Co-operative Industrial Estate, Mathura Road, New Delhi – 110044. The paid up Share Capital of the Applicant Company No. 6 is Rs. 10,00,000/- divided into 1,00,000 equity shares of Rs. 10 each.

10. The Ld. Counsel appearing for the Applicant Companies has prayed for dispensation of convening meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies. The convenience chart is reproduced below for reference: -

Particulars	Demerged Company-1/ Applicant Company-1	Demerged Company-2/ Applicant Company-2	Demerged Company-3/ Applicant Comlpany-3	Amalgamating Company-1/ Applicant Company- 4	Amalgamating Company-2/ Applicant Company- 5	Transferee Company/ Resulting Company / Applicant Company- 6
Equity shareholders	7 *(Page No. 303of Volume-2)*	8 *(Page No. 476 of Volume 3)*	10 *(Page No. 826 of Volume-5)*	6 *(Page No. 1066 of Volume-7)*	2 *(Page No. 1247 of Volume-8)*	4 *(Page No. 1389 of Volume-8)*
Total Value of Equity Shares (in Rs.)	Rs. 10,17,82,660/-	Rs. 62,94,630/-	Rs. 5,95,22,900/-	Rs. 92,20,000/-	Rs. 1,00,00,000/-	Rs. 10,00,000/-
Consent	All	All	All	All	All	All

	(Page No. 304-350 of Volume-2)	*(Page No. 477-528 of Volume 3)*	*(Page No. 827-890 of volume-5)*	*(Page No. 1067-1107 of Volume -7)*	*(Page No. 1248-1261 of Volume-8)*	*(Page No. 1390-1413 of Volume-8)*
Secured Creditors	2 *(Page No. 352-353of Volume-3)* - Yes Bank = 86% - ICICI Bank= 14% (letter was filed)	2 *(Page No. 530-531 of volume-4)*	1 *(Page No. 892-893 of volume-6)*	1 *(Page No. 1109-1110 of volume 7)*	Nil *(Page No. 1261A of Volume-8)*	1 *(Page No. 1415-1416 of Volume-9)*
Value of Secured Creditors (in Rs.)	4,70,27,106	43,15,81,819	45,60,13,454	17,03,92,112	NA	39,75,00,000
Consent Given	All *(Page No. 354-367 of Volume 3)* (the consent affidavit of ICICI Bank was filed through additional affidavit vide diary no-*07101020544420231)* on July 11, 2023	All *(Page No. 532-560A of volume 4)*	All *(Page No. 895-916 of Volume-6)*	All *(Page No. 1111-1116 of Volume-7)*	N/A	All *(Page No. 1417-1426 of Volume-9)*
Unsecured Creditors	4 *(Page No. 369-370 of Volume-3)*	23 *(Page No. 562-563 of volume-4)*	8 *(Page No. 918-919 of Volume 6)*	11 *(Page No. 1118-1119 of volume 7)*	9 *(Page No. 1263-1264 of Volume-8)*	3 *(Page No. 1427-1429 of Volume-9)*
Value of unsecured creditors	2,22,93,109	25,94,09,410	16,61,55,274	29,10,35,803	8,71,04,461	1,49,09,219
Consent Given	All *(Page No. 371-392 of Volume 3)*	All *(Page No. 566-715 of Volume-4)*	All *(Page No. 920-972 of Volume-6)*	All *(Page No. 1120-1187 of volume-7)*	All *(Page No. 1265-1324 of Volume-8)*	All *(Page No. 1430-1448 of volume-9)*

11. We have heard the submission made by the Ld. Counsel and having perused the records as well as documents placed on record, we allow this Composite Scheme of Arrangement that divides the transaction in the following parts: -

PART – A

Demerger of the Quick Retail Restaurant ('QRS') business of Haldiram Manufacturing Company Private Limited, Haldiram Ethnic Foods Private Limited, and Haldiram Marketing Private Limited ***into*** Resulting Company with effect from the Appointed Date i.e., 1st April 2023.

PART – B

Amalgamation of Haldiram Products Private Limited and HR Bakers Private Limited ***with and into*** Resulting Company with effect from the Appointed Date i.e., 1st April 2023.

We also allow the prayer for the dispensation of the meetings of the Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies.

12. The Application CA (CAA) – 56 (ND) 2023 stands ***allowed***.

SD/-	**SD/-**
ATUL CHATURVEDI	**BACHU VENKAT BALARAM DAS**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**